

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
JAMES GAYNOR and DEBORAH GAYNOR,

Index No.:

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, LT. MIGUEL ESTEVES,
DETECTIVE TIMOTHY HEPWORTH, P.O.
PATRICK J. CONNORS, P.O. AUSTIN BLACK,
and JOHN & JANE DOES, said names being fictitious
and Presently unknown, intended to represent
individual officers of the New York City Police
Department,

SUMMONS

Defendants.

-----X

To the above named Defendants:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer the complaint of the plaintiff(s) herein and to serve a copy of your answer on the plaintiff(s) at the address indicated below within 20 days after the service of this Summons (not counting the day of service itself), or within 30 days after service is complete if the Summons is not delivered personally to you within the State of New York.

YOU ARE HEREBY NOTIFIED THAT should you fail to answer, within the applicable time limitation stated above, a judgment may be entered for the relief requested in the Complaint.

This matter will be heard in the Supreme Court of the State of New York, in the for the County of Richmond. The basis of venue is the residence of Plaintiff.

Dated: October 17, 2024

Anthony M. Bramante, Esq.
Attorney for Plaintiff
26 Court Street, Suite 514
Brooklyn, New York 11242
718.625.5525

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
JAMES GAYNOR and DEBORAH GAYNOR,

Index No.:

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, LT. MIGUEL ESTEVES,
DETECTIVE TIMOTHY HEPWORTH, P.O. PATRICK J.
CONNORS, P.O. AUSTIN BLACK, and JOHN &
JANE DOES, said names being fictitious and
Presently unknown, intended to represent
individual officers of the New York City Police Department,

Defendants.

-----X
Plaintiffs, JAMES GAYNOR and DEBORAH GAYNOR, by their attorney
Anthony M. Bramante, Esq. complaining of the Defendants, respectfully set forth and
allege, upon information and belief, that:

**AS AND FOR A FIRST CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JAMES GAYNOR:**

1. At all relevant times, defendant THE CITY OF NEW YORK was a
municipal corporation duly existing under and by virtue of the laws of the State of New
York.
2. At all relevant times, defendant THE CITY OF NEW YORK was a
corporation doing business in the State of New York.
3. At all relevant times, defendant THE CITY OF NEW YORK operated a
police department as part of and in conjunction with its municipal function.
4. At all relevant times, defendant THE CITY OF NEW YORK maintained
said police department.
5. At all relevant times, defendant THE CITY OF NEW YORK managed
said police department.

6. At all relevant times, defendant THE CITY OF NEW YORK controlled said police department.

7. At all relevant times, defendant THE CITY OF NEW YORK, its servants, agents and/or employees, employed police officers, detectives, sergeants and other personnel to work as representatives of defendant THE CITY OF NEW YORK.

8. At all relevant times, defendant THE CITY OF NEW YORK had the duty to ensure that the actions, activities and behavior of its said servants, agents, police officers, detectives, sergeants and/or employees conformed to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

9. At all relevant times, defendant THE CITY OF NEW YORK had the duty to ensure that its said servants, agents, police officers, detectives, sergeants and/or employees conducted themselves in such a manner so as to not intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

10. At all relevant times, defendant THE CITY OF NEW YORK employed a police officer known as Lieut. Miguel Esteves, believed to be a police officer of the New York City Police Department, to work as a representative of defendant THE CITY OF NEW YORK (hereinafter referred to as defendant “Esteves”).

11. At all relevant times, defendant THE CITY OF NEW YORK employed a police detective known as Detective Timothy Hepworth, believed to be a police officer of the New York City Police Department, to work as a representative of defendant THE CITY OF NEW YORK (hereinafter referred to as defendant “Hepworth”).

12. At all relevant times, defendant THE CITY OF NEW YORK employed a

police officer known as P. O. Patrick J. Connors, believed to be a police officer of the New York City Police Department, to work as a representative of defendant THE CITY OF NEW YORK (hereinafter referred to as defendant “Connors”).

13. At all relevant times, defendant THE CITY OF NEW employed a police officer known as P. O. Austin Black, believed to be a police officer of the New York City Police Department, to work as a representative of defendant THE CITY OF NEW YORK (hereinafter referred to as defendant “Black”).

14. At all relevant times, defendant THE CITY OF NEW YORK had the duty to ensure that the actions, activities and behavior of Defendants Esteves, Hepworth, Connors and Black conformed to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

15. At all relevant times, defendant THE CITY OF NEW YORK had the duty to ensure that Defendants Esteves, Hepworth, Connors, Black and defendants and John and Jane Does conducted themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiffs herein.

16. At all relevant times, Defendants Esteves, Hepworth, Connors, Black and defendants and John and Jane Does were individually a servant, agent, employee and/or representative of defendant THE CITY OF NEW YORK.

17. At all relevant times, Defendants Esteves, Hepworth, Connors, Black and defendants and John and Jane Does as police officers of THE CITY OF NEW YORK, had the duty to ensure that their actions, activities and behavior conformed to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

18. At all relevant times, Defendants Esteves, Hepworth, Connors, and Black and defendants and John and Jane Does, as police officers of THE CITY OF NEW YORK, had the duty to conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

19. At all relevant times, defendant THE CITY OF NEW YORK employed police officers named herein as "JOHN DOES" and "JANE DOES", said names being fictitious and presently unknown, persons believed to be police officers and personnel of the New York City Police Department, to work as representatives of THE CITY OF NEW YORK.

20. At all relevant times, defendant THE CITY OF NEW YORK had the duty to ensure that the actions, activities and behavior of said defendant police officers named herein as "JOHN DOES" and "JANE DOES", said names being fictitious and presently unknown, persons believed to be police officers and personnel of the New York City Police Department, conformed to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

21. At all relevant times, defendant THE CITY OF NEW YORK had the duty to ensure that said defendant police officers named herein as "JOHN DOES" and "JANE DOES", said names being fictitious and presently unknown, persons believed to be police officers and personnel of the New York City Police Department, conducted themselves in such a manner so as to not intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

22. At all relevant times, defendants "JOHN DOES" and "JANE DOES", said

names being fictitious and presently unknown, persons believed to be police officers and personnel of the New York City Police Department, were servants, agents, employees and/or representatives of defendant THE CITY OF NEW YORK.

23. At all relevant times, defendants "JOHN DOES" and "JANE DOES", said names being fictitious and presently unknown, persons believed to be police officers and personnel of the New York City Police Department, had the duty to ensure that their actions, activities and behavior conformed to a certain standard of conduct established by law for the protection of others against unreasonable risk of harm.

24. At all relevant times, defendants "JOHN DOES" and "JANE DOES", said names being fictitious and presently unknown, persons believed to be police officers and personnel of the New York City Police Department, had the duty to conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently result in injuries to others, including the plaintiff herein.

25. Starting on the 24th day of October 2023, Plaintiffs were present at their residence located at 106 Madsen Avenue, Staten Island, New York 10309 (hereinafter referred to as the "Location").

26. Starting on the 24th day of October, 2023, certain police officers, detectives, and/or personnel of the police department of defendant THE CITY OF NEW YORK, including but not limited to Defendants Esteves, Hepworth, Connors, Black, were present at the Location.

27. On the 24th day of October, 2023, Defendants Esteves, Hepworth, Connors, Black provided the address of the Plaintiffs to "Mikhael Machale" and "Michale Morkov", believed to be unregistered confidential informants of the Defendants

for the purposes of attempting to induce or inducing the unregistered confidential informants to make statements against Plaintiff James Gaynor thereby falsely providing a basis for the arrest of Plaintiff by said police officers, detectives, sergeants and/or personnel, in the presence of Defendants Esteves, Hepworth, Connors, and Black while they were at the Location on October 25, 2023.

28. On the 25th day of October 2024, plaintiff James Gaynor was handcuffed by heavily armed members of the New York City Police Department, including but not limited to Defendants Esteves, Hepworth, Connors, and Black, who used grossly unreasonable methods and abuse of process while the said plaintiff James Gaynor was present at the Location.

29. By reason of the foregoing, plaintiff James Gaynor was injured.

30. The foregoing occurrences and the resulting injuries to James Gaynor were caused solely by reason of the carelessness, negligence, intentional infliction of emotional distress, abuse of process, wrongful assault and battery on the part of defendants, their servants, agents, police officers, detectives, sergeants and/or employees, in violation of the plaintiff James Gaynor's Civil and Constitutional rights, and without any cause, provocation or negligence on the part of plaintiff James Gaynor's contributing thereto.

31. This action arises under the United States Constitution, particularly under provisions of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983 and the rights under the Constitution and laws of the State of New York.

32. Each and all of the acts of defendants herein were done by defendants, their servants, agents and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and The City of New York, and under the authority of their office as police officers of said City and State.

33. By reason of the foregoing, plaintiff James Gaynor was severely injured and damaged, sustained severe nervous shock and mental anguish, emotional upset, some of which injuries are permanent in nature and duration; plaintiff James Gaynor will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff JAMES GAYNOR incurred and in the future will necessarily incur further medical expenses in an effort to be cured of said injuries; plaintiff JAMES GAYNOR has suffered and in the future will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence, all to his great damage.

34. On or about January 9, 2024, and within 90 days after the claims served upon arose, the plaintiff caused a Notice of Claim, in writing, sworn to on behalf of plaintiffs, containing the name and post office address of the plaintiff, and plaintiff's attorneys, the nature of the claim, the time when, the place where and the manner in which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon defendant THE CITY OF NEW YORK, by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

35. More than thirty (30) days have elapsed since the aforesaid Notice of Claim was served upon defendant THE CITY OF NEW YORK.

36. Defendant THE CITY OF NEW YORK was negligent and has refused and neglected to adjust, settle and pay the afore described Claim.

37. This Claim was filed and this action has been commenced within one year and ninety days after the happening of the event upon which the Claim is based.

38. Plaintiff has complied with all conditions and requirements precedent to the commencement of this action.

39. Oral examination of the plaintiffs was conducted on October 2, 2024 in compliance with Section 50-h of the General Municipal Law.

40. This action falls within one or more of the exceptions set forth in CPLR 1602.

41. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

42. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

43. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that said defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.

44. Pursuant to CPLR Section 1602(11), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiffs' non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants acted knowingly or intentionally, and in concert, to cause the acts or failures which are a proximate cause of plaintiff's injuries.

45. Pursuant to CPLR Section 1602(5), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants' wrongful conduct was intentional.

46. By reason of the foregoing, plaintiff James Gaynor has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

**AS AND FOR A SECOND CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JAMES GAYNOR:**

47. Plaintiff repeats, reiterates and realleges each and every allegation as contained in the First Cause of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

48. On the 25th day of October 2023, defendants removed plaintiff James Gaynor from the Location.

49. On the 25th day of October 2023 Plaintiff Deborah Gaynor was at the Location.

50. On the 25th day of October, 2023 defendants took plaintiff James Gaynor to the 123rd Precinct of the New York City Police Department.

51. On the 25th day of October 2023, defendants placed plaintiff in a holding area located in 123rd Precinct of the New York City Police Department.

52. On the 25th day of October 2023, defendants took issued a summons to appear in court to the Plaintiff James Gaynor

53. On the 25th day of October 2023, plaintiff James Gaynor was carelessly, negligently, wantonly, intentionally, maliciously, relentlessly, illegally, falsely, improperly and wrongfully arrested, restrained, detained, imprisoned, handcuffed, taken into custody, handcuffed within for a prolonged period of time, by police officers, detectives, sergeants and/or personnel without probable or just cause or provocation, who falsely accused plaintiff James Gaynor of crimes of which he was wholly innocent and detained and imprisoned plaintiff James Gaynor for an unreasonable period of time thereafter until he was released.

54. Defendants' police officers, detectives, sergeants and/or personnel, including but not limited to Defendants Esteves, Hepworth, Connors, Black were employees of defendant THE CITY OF NEW YORK and were acting within the scope of their employment for said municipal defendant.

55. On the 24th day of January 2009, defendant THE CITY OF NEW YORK, by its said heavily armed police officers, sergeants, detectives, servants, agents and/or employees and personnel, including but not limited to defendant Defendants Esteves, Hepworth, Connors and Black all acting within the scope of their employment for said municipal defendant, did carelessly, negligently, wantonly, intentionally, maliciously,

relentlessly, illegally, falsely, improperly and wrongfully arrest, restrain, detain, imprison, handcuff, abuse, threaten, assault and hold plaintiff JAMES GAYNOR detain and imprison him without just cause or provocation.

56. By reason of the foregoing, plaintiff JAMES GAYNOR was caused to suffer severe and serious injuries and damages mentally, suffered grievous harm, embarrassment, defamation of character, damage to his good name, credit, character and reputation, and plaintiff JAMES GAYNOR was subjected to extreme public humiliation, scorn, contempt, derision and ridicule.

57. By reason of the foregoing, plaintiff JAMES GAYNOR has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

**AS AND FOR A THIRD CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JAMES GAYNOR:**

58. Plaintiff repeats, realleges each and every allegation as contained in the First and Second Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

59. On the 25th day of October, 2024 defendants, their heavily armed servants, agents, employees, police officers, detectives, sergeants and/or personnel, including but not limited to defendant DEFENDANTS ESTEVES, HEPWORTH, CONNORS, BLACK AND DEFENDANT carelessly, negligently, wantonly, intentionally, maliciously, relentlessly, illegally, falsely, improperly and wrongfully threatened plaintiff JAMES GAYNOR with the intention of seriously frightening him.

60. The foregoing actions of defendants, their servants, agents, employees and/or personnel, were willful, intentional and unwarranted, without any just cause or provocation, and were intended to injure, frighten and shock plaintiff JAMES GAYNOR.

61. By reason of the foregoing, plaintiff JAMES GAYNOR was caused to sustain severe and serious injuries and damages, both mentally and physically, severe nervous shock, emotional distress and illness, was placed in fear for his well-being, was subjected to extreme embarrassment, humiliation, scorn and ridicule, and caused to suffer extreme mental and emotional anguish, illness and distress, as well as severe and permanent bodily and psychological injuries and damages.

62. By reason of the foregoing, plaintiff JAMES GAYNOR has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

**AS AND FOR A FOURTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JAMES GAYNOR:**

63. Plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second and Third Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

64. Upon information and belief, on the 24th day of January 2009, defendants, their servants, agents, police officers, detectives, sergeants and/or employees, including but not limited to Defendants Esteves, Hepworth, Connors and Black under color of government authority, fabricated information to support his arrest.

65. Starting on the 24th day of October 2023 and continuing on October 25, 2023, defendants, their servants, agents, police officers, detectives, sergeants and/or employees, including but not limited to Defendants Esteves, Hepworth, Connors and Black under color of government authority, attempted to coerce confidential informants to make false claims of criminal activity by the Plaintiff James Gaynor.

66. On the 25th day of October 2023, defendants, their servants, agents, police officers, detectives, sergeants and/or employees, including but not limited Defendants Esteves, Hepworth, Connors and Black under color of government authority, conspired with confidential informants to make false claims of criminal activity by the Plaintiff James Gaynor.

67. At all relevant times, defendants, their servants, agents, police officers, detectives, sergeants and/or employees, knew or should have known that the information supporting plaintiff's false, fabricated, unreliable, untrustworthy and erroneous.

68. At all relevant times, defendants, their servants, agents, police officers, detectives, sergeants, including but not limited to Defendants Esteves, Hepworth, Connors and Black failed to properly follow the rules and regulations of the Police Department of the City of New York in the arrest and custody of plaintiff.

69. At all relevant times, defendant THE CITY OF NEW YORK failed to properly and adequately promulgate, enforce, instruct, advise, abide by, require or ensure the appropriate rules, regulations, guidelines, procedures, policies or protocols with respect to the arrest and custody of members of the public, and this plaintiff in particular.

70. At all relevant times, defendant THE CITY OF NEW YORK, its servants, agents, police officers, detectives, sergeants and/or employees, including but not limited

to Defendants Esteves, Hepworth, Connors and Black acted in total and wanton disregard for the safety, protection, freedom, civil and constitutional rights of plaintiff JAMES GAYNOR.

71. Starting on the 24th day of October 2023 and continuing on the 25th day of January 2023, defendants, their servants, agents, police officers, detectives, sergeants and/or employees, including but not limited to Defendants Esteves, Hepworth, Connors and Black under color of government authority, failed to warn plaintiff of his legal rights in violation of his constitutional rights.

72. By reason of the foregoing, plaintiff JAMES GAYNOR was caused to suffer severe and serious injuries and damages both physically and mentally, suffered grievous harm, embarrassment, defamation of character, damage to his good name, credit, character and reputation, violation of privacy and sleep deprivation, and plaintiff JAMES GAYNOR was subjected to extreme public humiliation, scorn, contempt, derision and ridicule.

73. By reason of the foregoing, plaintiff JAMES GAYNOR has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

**AS AND FOR A FIFTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JAMES GAYNOR:**

74. Plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third and Fourth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

75. At all relevant times, defendants negligently failed to provide for the safety, security, protection and rights of plaintiff JAMES GAYNOR.

76. At all relevant times, defendants negligently failed to prevent the within abuse of process and intentional infliction of emotional injury and distress by police officers, detectives, sergeants, servants, agents, employees and/or personnel who were acting within the course and scope of their employment for the municipal defendant.

77. By reason of the foregoing, plaintiff JAMES GAYNOR was injured.

78. The foregoing occurrences and the resulting injuries to plaintiff JAMES GAYNOR were caused solely by reason of the carelessness, negligence, abuse of process, failure to provide for the safety, security and protection, lack of supervision and wanton and willful disregard on the part of defendants, without any negligence on the part of the plaintiffs contributing thereto.

79. By reason of the foregoing, plaintiff JAMES GAYNOR has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

**AS AND FOR A SIXTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JAMES GAYNOR:**

80. Plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth and Fifth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

81. At all relevant times, defendants negligently failed to provide for the safety, security and protection of plaintiff JAMES GAYNOR.

82. At all relevant times, defendants negligently failed to prevent the within incidents of abuse of process by police officers, detectives, sergeants and/or personnel who were acting within the course and scope of their employment for the municipal defendant.

83. By reason of the foregoing, plaintiff JAMES GAYNOR was injured.

84. The foregoing occurrences and the resulting injuries to plaintiff JAMES GAYNOR were caused solely by reason of the carelessness, negligence, failure to provide for the safety, security and protection, lack of supervision and wanton and willful disregard on the part of defendants, without any negligence on the part of the plaintiffs contributing thereto.

85. By reason of the foregoing, plaintiff JAMES GAYNOR has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JAMES GAYNOR:**

86. Plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second, Third, Fourth, Fifth and Sixth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

87. All of the foregoing and the abuse of process by defendants, their servants, agents, police officers, detectives, sergeants and/or employees, were in wanton, intentional and malicious disregard for the life, health, safety, freedom, protection, rights and well-being of plaintiff JAMES GAYNOR.

88. By reason of the foregoing, plaintiff JAMES GAYNOR has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

**AS AND FOR A EIGHTH CAUSE OF ACTION ON
BEHALF OF PLAINTIFF JAMES GAYNOR:**

89. Plaintiff repeats, reiterates and realleges each and every allegation as contained in the First through Seventh (inclusive) Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

90. Starting on the 24th day of October 2023 and continuing on the 25th day of October 2023, plaintiff JAMES GAYNOR was present at the Location and within various precincts of the New York City Police Department.

91. On 24th day of October 2023 and continuing on the 25th day of October 2023, certain police officers, detectives, sergeants and/or personnel of the police department of defendant THE CITY OF NEW YORK were present at the Location and within various precincts of the New York City Police Department.

92. On the 25th day of October 2023,, plaintiff JAMES GAYNOR was wantonly, intentionally, maliciously, illegally handcuffed, unreasonably refused the use of bathroom facilities, and handcuffed within holding area for a prolonged period of time by heavily armed members of the New York City Police Department who used grossly unreasonably methods abuse of process while the said plaintiff was present in the Apartment.

93. By reason of the foregoing, plaintiff JAMES GAYNOR was injured.

94. The foregoing occurrences and the resulting injuries to JAMES GAYNOR were caused solely by reason of the carelessness, negligence, intentional infliction of emotional distress, abuse of process, excessive use of brutal force and wrongful assault and battery on the part of defendants, their servants, agents, police officers, detectives, sergeants and/or employees, in violation of the plaintiff JAMES GAYNOR's Civil and Constitutional rights, and without any cause, provocation or negligence on the part of plaintiff JAMES GAYNOR contributing thereto.

95. This action arises under the United States Constitution, particularly under provisions of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983 and the rights under the Constitution and laws of the State of New York.

96. Each and all of the acts of defendants herein were done by defendants, their servants, agents and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

97. By reason of the foregoing, plaintiff JAMES GAYNOR was severely injured and damaged, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration; plaintiff JAMES GAYNOR will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff JAMES GAYNOR incurred and in the future will necessarily incur medical expenses in an effort to be cured of said injuries; plaintiff JAMES GAYNOR has suffered and in the future; and plaintiff JAMES GAYNOR will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence, all to her great damage.

98. By reason of the foregoing, plaintiff JAMES GAYNOR has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A NINTH CAUSE OF ACTION:

99. Plaintiff repeats, reiterates and realleges each and every allegation as contained in the First through Eighth Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

100. Defendants, their servants, agents, employees, police officers, and/or representatives intentionally, wantonly, maliciously, vengefully and falsely commenced a criminal proceeding against the plaintiff, publicly, falsely, maliciously, wantonly, intentionally, vengefully and accusing him of the criminal charges of which he was wholly innocent.

101. Starting on October 23, 2023, defendants intentionally, wantonly and maliciously caused, directed, ordered, allowed, continued and advanced the prosecution of the plaintiff, as a common criminal, causing and maliciously prosecuted the plaintiff.

102. On or about November 21, 2023, the charges against the plaintiff James Gaynor were dismissed.

103. As a result of defendants' malicious prosecution of plaintiff JAMES GAYNOR, plaintiff's freedom, civil and Constitutional rights were violated, plaintiff suffered embarrassment, inconvenience, and incurred costs, expenses and fees associated with defending the charges maliciously pursued against him, all without any cause, provocation or negligence on the part of the plaintiff contributing thereto.

104. Plaintiff has complied with all conditions and requirements precedent to the commencement of this action.

AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF

DEBORAH GAYNOR

105. This Plaintiff repeats and realleges all of the allegations of the paragraphs of the complaint numbered 1 through 108 with the same force and effect as if here verbatim set forth.

106. This Plaintiff is the lawfully married wife of Plaintiff James Gaynor and is responsible for his care and support.

107. By reason of the foregoing, plaintiff DEBORAH GAYNOR has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

WHEREFORE, plaintiffs JAMES GAYNOR and DEBORAH GAYNOR demand judgment against defendants on each of the Causes of Action in an amount exceeding the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction, in amounts to be determined upon the trial of this action, together with the costs and disbursements of this action, and with interest from the date of this occurrence.

Dated: Brooklyn, New York
October 17, 2024

Yours, etc.,

ANTHONY M. BRAMANTE
Attorney for Plaintiff
26 Court Street – Suite 514
Brooklyn, New York 11242
718.625.5525
anthony.bramante@bramantelaw.com

ATTORNEY VERIFICATION

STATE OF NEW YORK)
)ss:
COUNTY OF KINGS)

ANTHONY M. BRAMANTE, an attorney duly admitted to practice before the courts of the State of New York affirms the following to be true under the penalties provided by law:

I am the attorney of record for the Plaintiffs in the within action. I have read the foregoing Verified Complaint contents thereof.

The same is true to my own knowledge, except as to those matters therein alleged to be upon information and belief, and to those matters I believe it to be true.

The reason the verification is made by me and not by the Plaintiffs is that your affirmant maintains an office for the practice of law, outside the County in which the Plaintiffs reside. The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

The file maintained by my office in this matter, discussions with client and investigation.

Dated: October 17, 2024

/s/Anthony M. Bramante
ANTHONY M. BRAMANTE

Index No.

Year: 2024

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

JAMES GAYNOR and DEBORAH GAYNOR,

Plaintiffs,
-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, LT. MIGUEL ESTEVES, DETECTIVE TIMOTHY HEPWORTH, P.O. PATRICK J. CONNORS, P.O. AUSTIN BLACK, and JOHN & JANE DOES, said names being fictitious and Presently unknown, intended to represent individual officers of the New York City Police Department,

Defendants.

SUMMONS and VERIFIED COMPLAINT

ANTHONY M. BRAMANTE, ESQ.
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26 Court Street, Suite - 514
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Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous as defined in section 130-1.1(c) of this Subpart, and (2) where the paper is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom, and (ii) the matter was not obtained in violation of Part 1200. Rule 4.5 of this Title.

Dated: October 17, 2024

Signature: Anthony M. Bramante

Anthony M. Bramante